

Court No. - 39

Case :- WRIT - C No. - 31705 of 2022

Petitioner :- Ravishanker Verma

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Digvijay Tiwari

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

Heard learned counsel for the parties and perused the record.

The petitioner is aggrieved by the assessment made by the department on the plea of unauthorized use of electricity and the penalty imposed upon him.

It appears that at the first instance, the petitioner came to this Court in Writ-C No. 21379 of 2022 (Ravishanker Verma vs. State of U.P. and 3 others) which was decided on 1.8.2022 relegating the petitioner with the liberty to file his objection before the competent authority under Para 6.5 of the U.P. Electricity Supply Code, 2005.

The present writ petition is directed against the rejection of the objection filed by the petitioner under Para 6.5 of the U.P. Electricity Supply Code, 2005.

As the matter of the unauthorized use of electricity and consequent penalty upon the petitioner, we are of the opinion that against the assessment made by the Executive Engineer/Presiding Officer, Vidyut Vitran Khand, Ballia namely respondent no. 3, the remedy before the petitioner is to file an appeal under Section 127 of the Electricity Act, 2003.

No factual enquiry can be made within the scope of Article 226 of the Constitution of India, we, therefore, relegate the petitioner to approach the appellate authority.

The writ petition is, thus, **dismissed**, on the ground of alternative remedy.

Order Date :- 21.11.2022

Brijesh